TOWNSHIP OF LINCOLN
CLARE COUNTY
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Lincoln Township Zoning Board of Appeals

TBD – Chair ***Marshall Swanson*** – Vice-Chair
TBD– Secretary ***Tamara McCaslin*** - Member
Jerry Bridges – Township Board Liaison ***Ken Beougher*** - Alternate

Roger Carey – Zoning Administrator
David Lipovsky – Building Inspector
Deb Sherrod – Recording Secretary

Lincoln Township Zoning Board of Appeals
Regular Meeting
Wednesday, December 9, 2020
(Via Zoom)

The meeting was called to order by Acting Chair McCaslin at 7:05 pm.

Roll Call:
Present – Board Members: McCaslin, Bridges, Beougher, Swanson at 7:10
Staff: Clerk Carol Majewski, Zoning Administrator Roger Carey, Recording Secretary Sherrod
Absent – 0
Public – 6

Approval of Agenda: Bridges moved to approve the agenda as presented; Beougher seconded. Motion passed with all in favor.

Public Comment: Acting Chair McCaslin stated that during this session, any person may speak for up to 3 minutes, and speakers may only speak once. Please direct all questions and comments to the Chair.

Approval of Minutes:

Regular Meeting minutes of Thursday, November 12, 2020 – It was moved by Bridges and seconded by McCaslin to accept the minutes as written. The motion passed with all in favor.

Conflict of Interest Statement (Declare and Cite): No conflict of interest was stated by present members.

Application for Variance: Application for a Variance was received on 10/27/20, applicants Ted Christoff and Jon Seamans for their property at 1950 Forest Ave., consisting of Lot 9 and N. ½ of lot 8, Lincoln Resort, Tax ID # 010-300-009-00 They are requesting approval for the construction of an Accessory Building which is out of compliance with the Lincoln Township Zoning Ordinance.

Public Notice: Notice of public hearing must be posted at least 15 days prior to the hearing. The following was published in *The Clare County Cleaver* November 19, 2020:

The Lincoln Township Zoning Board of Appeals will conduct a Public Hearing on Wednesday, December 9, 2020, at 7:00 pm at the Lincoln Township Hall, 175 Lake George Avenue in Lake George, Michigan. The Zoning Board of Appeals will consider the appeal of Ted Christoff for a variance on the property #010-300-009-00, located at 1950 Forest Ave., Harrison, Michigan 48625. This appeal is to allow the construction of an Accessory Building in the rear yard which would be out of compliance with the Lincoln Township Zoning Ordinance. Written comments may be sent to the Lincoln Township Zoning Board of Appeals, P.O. Box 239, Lake George, MI 48633 or by e-mail: clm@lincolntwp.com and must be received by 5:00 p.m. on Tuesday, December 8, 2020.

Notifications were sent to all property owners within 300 feet of the property for the purpose of public comment being made to the ZBA. The public hearing information was also posted at the township hall.

Explanation of Practical Difficulty: Acting Chair McCaslin read the following statement:

The Lincoln Township Board of Appeals must follow the variance standards created by Michigan Statute and Ordinance 44 of Lincoln Twp. In accordance with these standards the ZBA must determine that a Practical Difficulty exists in order to grant a variance. Practical Difficulties as identified in Section8.7 of the Lincoln Township Zoning Ordinances ARE THE LAW. They are as follows:

1. Practical Difficulty: That there are practical difficulties that prevent carrying out the strict letter of this Ordinance due to unique circumstances specific to the property such as its narrowness, shallowness, shape, or topography, and which do not generally apply to other property or uses in the same district and shall not be recurrent in nature. That a genuine hardship exists due to the circumstances are Unique to the Property
2. Circumstances: That the practical difficulty or special condition or circumstance is not a result of the actions of the applicant. That the variance will relate only to property described in the variance application. That granting the variance will not grant an applicant any special privilege.
3. Ordinance Purpose Adherence: Does this request relate to properties other than described in the Variance request?
4. Variance Harmony: That the variance will be in harmony with the purpose of this Ordinance and the intent of the District, including the protection of public health, safety and welfare in general and vehicular and pedestrian circulation specifically.
5. Effects: That the variance will not cause a substantial adverse effect upon surrounding property including property values and the development, use and enjoyment of property in the neighborhood or District.
6. Property Use: That strict compliance with the site development requirement in question would unreasonably prevent the owner from using the property for a permitted purpose or would render conformity unnecessarily burdensome.
7. Minimum Variance: That the variance requested is the minimum amount necessary to overcome the inequality inherent in the particular property or mitigate the practical difficulty.

Denial of Zoning Application:

The following is the text of the Zoning Permit denial:

September 27, 2020

Theodore Christoff

3218 Irene St.
Jackson, MI 49202

Re: Application for Zoning Permit for accessory building at 1950 Forest Ave., lot # 010-300-009-00.

Theodore Christoff

I have denied your zoning permit for an accessory building at 1950 Forest Ave. for the following reason.

Our Zoning Ordinance clearly states that as your accessory building is over 120 sq. ft. according to Section 20.9 Accessory Structures and Buildings, Paragraph C-2. Lot Line Setbacks: Accessory buildings and structures of less than one-hundred twenty (120) square feet in area and ten (10) feet in height shall be set back a minimum distance of five (5) feet from a side and rear lot line. Accessory buildings and structures greater than one-hundred twenty (120) square feet in area and/or greater than ten (10) feet in height shall comply with the minimum side and rear yard setback standards for the principal building according to the District in which it is located, but in no case shall such setback be less than five (5) feet.

According to Table 3-4, Site Development Requirements, setbacks for your size shed are 25 feet from the Road Right of Way, which is 40 feet in your area, 20 feet from the center of the road. According to your application your shed would be 12 feet from the road right of way.

Please do not hesitate to contact me with any further questions or concerns. Our Zoning Ordinance and Stand-Alone Ordinances are online at www.lincolntwp.com.

Cordially,
Roger Carey
Zoning Administrator, Lincoln Township
989-588-9538

Purpose: The purpose of this meeting is to determine if indicators exist to grant a variance as the zoning permit filed by the residents on September 27, 2020, was denied. Application for a Variance was received on 10/27/20, applicants Ted Christoff and Jon Seamans for their property at 1950 Forest Ave., consisting of Lot

9 and N. ½ of lot 8, Lincoln Resort, Tax ID # 010-300-009-00. The following is the reason for Variance: to allow the construction of an Accessory Building, out of compliance with the setbacks which is out of compliance with the Lincoln Township Zoning Ordinance.

Correspondence & Communications to ZBA: Acting Chair McCaslin read one letter from John and Cynthia Engelhardt. Cindy Engelhardt also made a statement in support of the Christoffs.

Presentation by Lincoln Township Zoning Administrator:

I have denied the application for a zoning permit for an accessory building at 1950 Forest Blvd. lot # 010-300-009-00 for the following reason: Failure to meet Road Setbacks. Setbacks are 25 feet from the road on lake front property.
Our Zoning Ordinance clearly states, according to Table 3-4: accessory buildings and structures greater than one-hundred twenty (120) square feet in area and/or greater than ten (10) feet in height shall comply with the minimum side and rear yard setback standards for the principal building according to the District in which it is located, but in no case shall such side yard setback be less than five (5) feet.
According to Table 3-4, Site Development Requirements, setbacks for your size shed are 25 feet from the Road Right of Way. The Road Right of Way is 40 feet on this property (20 feet from the center of the road.)

A viable option for this property would be to construct the Accessory Building in the Side Yard.

According to Table 3-4, Site Development Requirements, R-2 and R-2A Districts: Side yard setbacks for principal buildings in the R-2 and R-2A Districts shall be 10' except that in the case of a lot recorded with the County Register of Deeds prior to the effective date of this Ordinance, that does not have a minimum lot width of one-hundred (100) feet at some point measured between the normally required front and rear yard setback distances according to Table 3-4, each required minimum side yard setback shall be equal to ten percent (10%) of the lot width but in no case shall a side yard setback be less than five (5) feet.
This means your rear yard setback would be:

- 25 feet from the road right of way
- 6.6 feet from side lot line calculated as such.

* The property is 66 feet wide, the setback for the side yard would be 6.6 feet.
* The house is 26 feet wide, subtract that from the 66 and you get 40 feet.
* The side of the house closest to town looks to be 8 feet from the lot line.

* Subtract 8 feet from the 40 feet and that leaves 32 feet on the other side of the house.
* The shed needs to be 10 feet from the side of the house, so subtract 10 feet from the 32 feet, and that leaves 22 feet.
• Subtract 6.6 feet from 22 and that leaves 15.4 feet for a shed.

As there is enough room in the side yard for a shed there is no reason for a variance.

Presentation by the Petitioner: Mr. Christoff confirmed that the Board members had received the drawings of the property. All said that they have them. He stated that the structure in question is so close to the road that it is a hazard which makes it almost impossible to safely back out into the road without a spotter. They felt that it would be safer to remove the shed and put up a different one in a safer location which would require the variance in question. This new structure will be narrower and smaller. The question is that the law requires it to be 30 feet from the road right of way, but they are proposing that it be 12 feet from the right of way. If they did as ZA Carey suggested to put the shed in the side yard to comply, it would take away their safe and enjoyable side yard for their children and guests to use. They feel that this side yard should be maintained as a recreational green space and not used for a shed.

His next point is that there is a new house just down the road which has been built only 10 feet from the road right away. This is a precedent.

He finished by stating that he appreciates the support that they have received from neighbors.

ZBA Members Comments & Questions:

Swanson stated that it is an eyesore where the shed is and agrees that it should be moved. Ken Beougher agreed that it should be moved, but into the side yard to keep it within the ordinance.

Bridges stated that if it is moved away from the road, would it totally take up the full side yard? Christoff: They wanted it to be 15 feet from the house and that is why they wanted it closer to the road. If you pick up the shed and move it to the side yard, I don't see how it would fit into the ordinance for the side line set back.

Bridges stated that there is enough room to move it into the side yard.

McCaslin asked ZA Carey if by moving it into the side yard, would it fit into all the setbacks? Carey affirmed that it would.

Christoff stated that by putting it into the side yard they would be decreasing the enjoyment and value of the property.

Public Comment: Acting Chair McCaslin made the following statement about Public Comment at this time:
I will allow public comments, only agenda items, (All comments shall be addressed to the Chair)

a. Each speaker shall give name and address.
b. A time limit may be imposed; I'm giving each speaker 5 minutes to speak.

Chair reserves the right to terminate a presentation or ask for summation if comments are repetitive.

Cindy Engelhardt stated that she thinks that the variance should be granted.

John Engelhardt added that the variance should be granted for safety reasons as well as improving the property.

Public Comment Closed by Chair:

Discussion and further questions by ZBA Members without comments or questions from the public.

Bridges stated the need to follow the zoning ordinance the way they are written. He feels that ZA Carey is correct that there is another way to solve this.

Beougher stated that he is sympathetic but that the solution is to move the shed to the side yard.

Swanson agreed with Bridges.

Bridges reiterated the need to abide by the zoning ordinance by law, but also apply it fairly rather than allow some to get a variance while others are denied. Much of the properties that are out of compliance were developed before the ordinance was adopted.

Acting Chair McCaslin opened the discussion back to the public.

ZBA Members Finalize Finding of Facts Form: Acting Chair McCaslin reminded members that they should have the Finding of Fact Form, fill them out, sign them, and then deposit them at the township hall in the Treasurer's locked box in front of the hall.

An Explanation of this process is given to the applicant that after the ZBA makes and accepts a motion to deny or approve the Variance Request the applicant may wait to receive a final decision paper for court purposes. If the applicant does not want to wait for the final decision paper, the decision will not be final until after the next ZBA meeting. In the case of a hearing held via Zoom, the Certified Decision Form will be emailed to the applicant in order to expedite the process.

Mr. Christoff addressed Ken & Marla Beougher concerning a practical difficulty which exists due to safety issues. He is disappointed that Jerry and Ken don't see a practical difficulty. He brought up the house recently built as close to the road as they are asking for.

McCaslin stated that you have to meet all the standards. ZA Carey stated that the house in question was built in the exact footprint of the past structure. This does not apply in this case as the ZA cannot grant something that is in the road right of way.

Motions: McCaslin made a motion to deny the Christoffs' request for variance at 1950 Forest Ave. for the construction of an accessory building. The request does not comply with the Lincoln Township Ordinance #44, Section 20.9. This proposed structure does not meet the guidelines for "Practical Difficulty". Swanson seconded.

Roll Call Vote: McCaslin: Yes; Swanson: Yes; Bridges: Yes; Beougher: Yes. The motion passed by a vote of 4 to 0. The variance is denied.

Public Comment: Several comments were made.

Adjournment: Bridges made a motion to adjourn; Swanson seconded. Motion passed with all in favor. Meeting adjourned at 7:52 pm.

Respectfully Submitted,

Deborah L. Sherrod, Recording Secretary